OKLAHOMA STATUTES

TITLE 74. STATE GOVERNMENT

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emerg. eff. May 22, 1992; Laws 2010, c. 249, § 5, eff. July 1, 2010; Laws 2013, c. 250, § 5, emerg. eff. May 13, 2013; Laws 2013, c. 358, § 32, eff. July 1, 2013.

§74-3106.1. Publications officers for state agencies.

A. Every state agency shall designate one of its employees as the publications officer for the agency and shall notify the Publications Clearinghouse of the Department of Libraries of the name of the publications officer and of the name of any new publications officer should a change occur.

B. Each publications officer of a state agency shall have the duty to submit publications, upon release, in compliance with Section 3-114 of Title 65 of the Oklahoma Statutes, to compile and forward to the Publications Clearinghouse required lists of the state publications of the agency, and to provide other related information which may be requested by the Publications Clearinghouse for the collection of state publications and the depository library system.

C. The publications officer shall notify the Publications Clearinghouse of the production of audiotapes, videotapes, films, filmstrips, slides, or other audiovisual publications. Every state agency shall preserve one copy of each audiovisual publication or the publications officer shall deposit one copy of each audiovisual publication with the Publications Clearinghouse for preservation.

D. Every state agency including all institutions of higher education shall provide to the Publications Clearinghouse a complete list of its state publications published or submitted online during the prior calendar year in accordance with the rules of the Publications Clearinghouse.

Added by Laws 1978, c. 165, § 7. Amended by Laws 1984, c. 13, § 7, eff. Nov. 1, 1984; Laws 1998, c. 364, § 34, emerg. eff. June 8, 1998; Laws 2013, c. 358, § 33, eff. July 1, 2013.

§74-3106.2. Renumbered as § 311.1 of Title 25 by Laws 2024, c. 246, § 2, eff. Nov. 1, 2024.

§74-3106.3. Oklahoma Government Website Information Act.

This act shall be known and may be cited as the “Oklahoma Government Website Information Act”.

Added by Laws 2010, c. 306, § 1, eff. Nov. 1, 2010.

§74-3106.4. Public bodies - Required posting of information on website.

A. Public bodies shall make available on their Internet website or on a general website if a public body uses a general website, the following:

1. Any administrative rules adopted pursuant to the Administrative Procedures Act, which the public body uses to operate;

2. Any proposed administrative rules submitted by the public body pursuant to the Administrative Procedures Act;

3. Any statutes affecting the public body and its operations; and

4. Any statutes the public may find useful in interacting with the public body.

B. For purposes of this section, "public body" is defined as provided by paragraph 1 of Section 304 of Title 25 of the Oklahoma Statutes.

C. In addition to the requirements listed in subsection A of this section, any public body that collects personally identifiable data shall make available on its Internet website, or on a general website if a public body uses a general website, the following:

1. What personally identifiable data is being stored;

2. How the personally identifiable data is stored; and

3. With whom the public body shares the personally identifiable data.

D. For purposes of this section, "personally identifiable data" means information which can identify an individual including, but not limited to, name, birth date, place of birth, mother's maiden name, biometric records, Social Security number, official state- or government-issued driver license or identification number, alien registration number, government passport number, employer or taxpayer identification number or any other information that is linked or linkable to an individual, such as medical, educational, financial or employment information.

Added by Laws 2010, c. 306, § 2, eff. Nov. 1, 2010. Amended by Laws 2019, c. 240, § 1, eff. Nov. 1, 2019.

§74-3109. Repealed by Laws 2005, c. 472, § 19, eff. July 1, 2005.

§74-3113. Disclosure of information indexed by social security numbers prohibited - Exceptions.

No state agency, board, commission or other unit or subdivision of state government may furnish any information indexed by social security number unless required by law or specifically authorized to do so by the holder of said social security number. Provided that this section shall not apply to a report produced by a state agency of monetary payments made to any state official or employee from State Treasury funds or accounts.

Laws 1974, c. 147, § 3.

§74-3113.1. Disclosure of breach of security of computerized personal information.

A. Any state agency, board, commission or other unit or subdivision of state government that owns or licenses computerized data that includes personal information shall disclose any breach of the security of the system following discovery or notification of the breach in the security of the data to any resident of Oklahoma whose unencrypted personal information was, or is reasonably believed to have been, acquired by an unauthorized person. The disclosure shall be made in the most expedient time possible and without unreasonable delay, consistent with the legitimate needs of law enforcement, as provided in subsection C of this section, or any measures necessary to determine the scope of the breach and restore the reasonable integrity of the data system.

B. Any state agency, board, commission or other unit or subdivision of state government that maintains computerized data that includes personal information that the state agency, board, commission or other unit or subdivision of state government does not own shall notify the owner or licensee of the information of any breach of the security of the data immediately following discovery, if the personal information was, or is reasonably believed to have been, acquired by an unauthorized person.

C. The notification required by this section may be delayed if a law enforcement agency determines that the notification will impede a criminal investigation. The notification required by this section shall be made after the law enforcement agency determines that it will not compromise the investigation.

D. As used in this section:

1. “Breach of the security of the system” means unauthorized acquisition of computerized data that compromises the security, confidentiality, or integrity of personal information maintained by the state agency, board, commission or other unit or subdivision

of state government. Good faith acquisition of personal information by an employee or agent of the state agency, board, commission or other unit or subdivision of state government for the purposes of that entity shall not be a breach of the security of the system, provided that the personal information is not used or subject to further unauthorized disclosure;

2. "Personal information" means the first name or first initial and last name of an individual in combination with any one or more of the following data elements, when either the name or the data elements are not encrypted:

a. social security number,

b. driver license number, or

c. account number, credit or debit card number, in combination with any required security code, access code, or password that would permit access to the financial account of an individual.

Personal information shall not include publicly available information that is lawfully made available to the general public from federal, state, or local public records; and

3. "Notice" means one of the following methods:

a. written notice,

b. electronic notice, if the notice provided is consistent with the provisions regarding electronic records and signatures set forth in Section 7001 of Title 15 of the United States Code, and

c. substitute notice, if the agency demonstrates that the cost of providing notice would exceed Two Hundred Fifty Thousand Dollars ($250,000.00), or that the affected class of subject persons to be notified exceeds five hundred thousand (500,000), or the agency does not have sufficient contact information. Substitute notice shall consist of all of the following:

(1) e-mail notice when the agency has an e-mail address for the subject persons,

(2) conspicuous posting of the notice on the agency's web site page, if the agency maintains one, and

(3) notification to major statewide media.

E. Notwithstanding paragraph 3 of subsection D of this section, a state agency, board, commission or other unit or subdivision of state government that maintains its own notification procedures as part of an information security policy for the treatment of personal information and is otherwise consistent with the timing requirements of this section shall be deemed to be in compliance with the notification requirements of this section if it notifies subject persons in accordance with its policies in the event of a breach of security of the system.

Added by Laws 2006, c. 298, § 1, emerg. eff. June 8, 2006.

§74-3114. State officials and employees prohibited from soliciting or accepting contributions for candidates.

No elected or appointed state official, his employees or others in behalf and for said elected or appointed state official, shall, directly or indirectly, solicit or accept contributions from employees in said department or agency for the benefit of or in behalf of any person who is a candidate for other political office.

(a) Violation of this section, upon resolution of the Legislature or either house thereof, shall be prosecuted by the appropriate district attorney, provided the appropriate district attorney shall have authority on his own motion to prosecute said violation in the absence of legislative resolution.

Upon conviction for violation of this section, the state official or any employee adjudged guilty, shall be immediately removed from office or position and shall be subject to bond forfeiture or so much thereof as necessary to reimburse the State of Oklahoma for monies wrongfully expended because of said violation. In event the Legislature or the appropriate District Attorney fails to act within a reasonable time, then any citizen taxpayer may institute suit and upon successful prosecution of the violation, like penalties are to attach.

Laws 1974, c. 293, § 5, emerg. eff. May 29, 1974.

§74-3116. Heroic Oklahoman Award.

There is hereby established the Heroic Oklahoman Award to recognize any citizen of the State of Oklahoma who distinguishes himself by conspicuous and extraordinary heroism which may have involved personal hazard or danger and the voluntary risk of life. The Heroic Oklahoman Award shall not be made solely on the basis of having saved a life. Said award shall be presented